U.S. Department
of Transportation
**Federal Aviation
Administration**

Office of the Chief Counsel

800 Independence Ave., S.W.
Washington, D.C. 20591

JAN - 4 2010

Taylor Grayson
[redacted]

Dear Mr. Grayson:

This letter responds to the request for a legal interpretation that you mailed to this office on August 25, 2009. You have requested clarification regarding the additional training requirements set forth in 14 CFR § 61.31(e) through (j). In particular, you have asked whether those requirements are considered "ratings limitations" under paragraph (l)(2), formerly paragraph (k)(2), of § 61.31.

Section 61.31(e) through (j) prohibits a pilot from acting as pilot in command of certain aircraft without first receiving additional flight training and obtaining an endorsement. Section 61.31(l)(2) directs that the "ratings limitations" of the section do not apply to certain pilots, including student pilots and applicants for practical tests given by an examiner. You have asked whether student pilots and checkride candidates are thus required to obtain the additional training and endorsements for the aircraft designated in § 61.31(e) through (j) before they may act as pilot in command of those aircraft or whether paragraph (l) renders those training requirements inapplicable to them.

Under the plain language of the regulation, the additional training requirements specified in § 61.31(e) through (j) are not ratings limitations. The ratings limitations in § 61.31 are contained in paragraphs (c) and (d) of that section. As such, because a pilot must be properly rated in the aircraft and properly rated and authorized to conduct the flight in order to act as pilot in command, student pilots and checkride candidates are required to comply with the additional training requirements and hold the appropriate endorsements prior to acting as pilot in command of the aircraft designated in § 61.31(e) through (j).

This response was prepared by Anne Moore, an Attorney in the Regulations Division of the Office of the Chief Counsel and coordinated with the Certification and General Aviation Operations Branch of Flight Standards Service. We hope this response has been helpful to you. If you have additional questions regarding this matter, please contact us at your convenience at (202) 267-3073.

Sincerely,

Rebecca B. MacPherson
Assistant Chief Counsel Regulations Division, AGC-200